

Line 2

Case Name: *Theo Van Buren v. Bill Holdings Inc., et al.*

Case No.: 25CV480145

See ORDER above. (As this entire action has been dismissed at Plaintiff's request made on September 1, 2026, this Demurrer is **OFF CALENDER** as **MOOT**. And all future hearings in this dismissed action are **VACATED**.)

Line 3

Case Name: *Kamila Kraba v. Armsby Lane Road Association*

Case No.: 25CV478200

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Kamila Kraba (“Plaintiff”) moves for an order:

1. Vacating the January 12, 2026, ex parte order that set aside the default previously entered against Defendant Armsby Lane Road Association (“ALRA”);
2. Confirming the Entry of Default against ALRA dated December 16, 2025; and
3. Striking the Answer and Cross-Complaint filed by ALRA on January 14, 2026, on the grounds that they were filed pursuant to a void order and by an association lacking legal counsel.

Notice of Motion (the “Motion”) at 2:20-29 (filed: Jan. 28, 2026).

The Motion is made under Code of Civil Procedure Sections 473(b) and 473(d) on the grounds that the January 12, 2026 ex parte order is void and was obtained through extrinsic fraud, specifically, that it was entered without proper notice, without a meaningful opportunity to be heard, based on an unauthorized appearance by an unincorporated association without counsel, an in reliance on a fraudulent Proof of Service and an inapplicable personal-service requirement. *Id.* at 2:30-35. ²

The Motion came on for hearing on September 9, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Procedural Background

Plaintiff filed this civil action on October 21, 2025, alleging causes of action for: breach of contract; governance violations; reckless disregard of members’ rights; breach of fiduciary duty; reckless disregard of her rights to transparency, accuracy, due diligence related to Armsby Lane road repairs; rigid enforcement of Civil code § 845 without due process; selective enforcement of the 2004 road agreement; refusal to mediate per Civil Code § 5935; and Breach of fiduciary duty: VP serves as ALRA counsel. (Complaint PLD-

² For the record, the Court notes that these are the actual (albeit unusual) lines numbers in this Motion.